

SYLLABUS FOR THE 2026 BAR EXAMINATIONS

REMEDIAL LAW, LEGAL AND JUDICIAL ETHICS, WITH PRACTICAL EXERCISES (25%)

NOTE: Only laws, rules, issuances, and jurisprudence pertinent to these topics as of **June 30, 2025** are examinable materials within the coverage of the 2026 Bar Examinations.

I. GENERAL PRINCIPLES

- A. Concept and Nature of Remedial Law
- B. Procedural Laws Applicable to Actions Pending at the Time of Promulgation
- C. Construction of Procedural Rules
- D. Rule-making Power of the Supreme Court
- E. Classification of Philippine Courts
- F. Hierarchy of Courts
- G. Doctrine of Non-interference or Judicial Stability

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5. Court of Tax Appeals
6. Regional Trial Courts
7. Family Courts
8. Special Commercial Courts and Cybercrime Courts
9. Metropolitan and Municipal Trial Courts – R.A. No. 11576
 - a. Expedited Proceedings – A.M. No. 08-8-7-SC
10. *Lupong Tagapamayapa* – R.A. No. 7160, Secs. 408, 409, and 412

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 - b. Membership Dues – CPRA, Canon III, Sec. 26
 - c. Professional Tax – R.A. No. 7160, Sec. 139
 - d. Legal Aid – CPRA, Canon III, Sec. 25; A.M. No. 22-11-01-SC, (Rules on Unified Legal Aid Service)
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 - (c) Agrarian Reform Proceedings – R.A. No. 6657, Sec. 50, as amended by R.A. No. 9700, Sec. 18
 - (d) *Barangay* Conciliation – R.A. No. 7160, Sec. 415

- (e) Cases under Expedited Procedure – A.M. No. 08-8-7-SC, Secs. 12 and 22
 - (f) Arbitration – R.A. No. 9285, Sec. 22; R.A. No. 876, Sec. 12
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- 7. Duties and Responsibilities of Lawyers – CPRA
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 - b. Bangalore Principles of Judicial Conduct 2002
 - c. 1989 Code of Judicial Conduct (1989 CJC)
 - d. Rules of Court
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- 3. Inhibition and Disqualification – Rules of Court, Rule 137; 1989 CJC, Rules 3.12 and 3.13
- 4. Administration and Discipline of Judges
 - a. Legal Basis – 1987 Constitution, Art. VIII, Secs. 5(5), 5(6), 6, 11, and Art. XI, Sec. 2; Rule 140, as amended by A.M. No. 21-08-09-SC
 - b. Disciplinary Proceedings against Members of the Judiciary
 - i. Impeachment – 1987 Constitution, Art. XI, Sec. 2
 - ii. Complaint against Members of the Supreme Court – Rule 140, Sec. 1(3)
 - iii. Judicial Disciplinary Proceedings – Rule 140
 - (a) Institution – Secs. 1 and 2
 - (b) Dual Nature – Sec. 4; A.M. No. 02-9-02-SC
 - (c) Charges – Secs. 13-16
 - (d) Sanctions – Secs. 17-23
 - (e) Clemency

X. PRACTICAL EXERCISES

- A. Promissory Note or Simple Loan Agreement
- B. Demand and Authorization Letters
- C. Sale Contract
- D. Lease Contract
- E. Special Power of Attorney
- F. Verification and Certification Against Forum Shopping
- G. Extra-judicial Settlement of Estate
- H. Judicial Affidavit
- I. Notarial Acts
 - 1. Jurat
 - 2. Acknowledgment
 - 3. Copy Certification
- J. Motions
 - 1. To Dismiss
 - 2. To Declare Defendant in Default
 - 3. Execution of Judgment
- K. Quitclaim in Labor Cases

- L. Information
- 1. Consummated Crimes
 - 2. Frustrated Crimes
 - 3. Attempted Crimes

— NOTHING FOLLOWS —